



**U.S. Citizenship
and Immigration
Services**

**Non-Precedent Decision of the
Administrative Appeals Office**

In Re: 36617675

Date: JAN. 23, 2025

Appeal of Nebraska Service Center Decision

Form I-140, Immigrant Petition for Alien Workers (National Interest Waiver)

The Petitioner seeks employment-based second preference (EB-2) immigrant classification as a member of the professions holding an advanced degree as well as a national interest waiver of the job offer requirement attached to this EB-2 classification. *See* Immigration and Nationality Act (the Act) section 203(b)(2), 8 U.S.C. § 1153(b)(2).

The Director of the Nebraska Service Center denied the petition, concluding that the Petitioner qualified for classification as a member of the professions holding an advanced degree, but that he had not established that a waiver of the required job offer, and thus of the labor certification, would be in the national interest. The matter is now before us on appeal.

The Petitioner bears the burden of proof to demonstrate eligibility by a preponderance of the evidence. *Matter of Chawathe*, 25 I&N Dec. 369, 375-76 (AAO 2010). We review the questions in this matter de novo. *Matter of Christo's, Inc.*, 26 I&N Dec. 537, 537 n.2 (AAO 2015). Upon de novo review, we will dismiss the appeal.

I. LAW

To qualify for the underlying EB-2 visa classification, a petitioner must establish they are an advanced degree professional or an individual of exceptional ability in the sciences, arts, or business. Section 203(b)(2)(A) of the Act. If a petitioner establishes eligibility for the underlying EB-2 classification, they must then demonstrate that they merit a discretionary waiver of the job offer requirement “in the national interest.” Section 203(b)(2)(B)(i) of the Act. *Matter of Dhanasar*, 26 I&N Dec. 884, 889 (AAO 2016), provides the framework for adjudicating national interest waiver petitions. *Dhanasar* states that U.S. Citizenship and Immigration Services (USCIS) may, as matter of discretion,¹ grant a national interest waiver if the petitioner demonstrates that:

- The proposed endeavor has both substantial merit and national importance;
- The individual is well-positioned to advance their proposed endeavor; and

¹ *See Flores v. Garland*, 72 F.4th 85, 88 (5th Cir. 2023) (joining the Third, Ninth, Eleventh, and D.C. Circuit Courts of Appeals in concluding that USCIS’ decision to grant or deny a national interest waiver is discretionary in nature).

- On balance, waiving the job offer requirement would benefit the United States.

Id.

II. ANALYSIS

The Director found that the Petitioner qualifies as a member of the professions holding an advanced degree. The remaining issue to be determined is whether the Petitioner has established that a waiver of the requirement of a job offer, and thus a labor certification, would be in the national interest. For the reasons discussed below, we conclude that the Petitioner has not sufficiently demonstrated the national importance of his proposed endeavor under the first prong of the *Dhanasar* analytical framework.

At the time of filing, the Petitioner was working for [REDACTED] as a Software and System on Chip Architect.² He stated that his main duties in this capacity “include video hardware and software architecture, CPU architecture, Linux and Real Time Operating System architecture, Autonomous Vehicles systems software architecture and design.”³

The Petitioner indicated that his proposed endeavor involves “the specialized field of Autonomous Systems.” He stated that “[h]e plans to advance his endeavor by advancing architecture and developments in autonomous driving and driver assistance.” The Petitioner initially provided a personal statement explaining that he intends “to further work on autonomous vehicle systems and their subsystems, such as – automotive System-on-Chip design, Video and Optical path of Sensors and autonomous embedded systems architecture.” He further asserted:

My work on designing computationally powerful hardware, on integration of new sensors and the focus on fail-safe operation is directly aimed to decrease the likelihood of accidents, thus protecting Public Health.

....

I plan to further the National Interest of the United States by focusing on architecture of chips on smaller transistor technologies. . . . I am planning to work on a safety software concept definition which will complement the safety hardware features of the system. . . . My cybersecurity focus will grow beyond MIPI protocols, covering other in-car communication protocols, such as – Ethernet. This field is challenging in vehicles, since the growing traffic bandwidth, the ongoing demand for security protocols such as MACsec and IPsec and automotive limitations, e.g. low latency and CPU load. I am planning to work on hardware/software architecture solutions for these use-cases. . . . In

² As the Petitioner is applying for a waiver of the job offer requirement, it is not necessary for him to have a job offer from a specific U.S. employer. However, we will consider information about his position to illustrate the capacity in which he intends to work in order to determine whether the proposed endeavor meets the requirements of the *Dhanasar* framework.

³ The record includes a February 2024 letter from [REDACTED] Executive Vice President stating: “[The Petitioner] is employed by [REDACTED] as a principal engineer and senior hardware architect at [REDACTED] platform group since April 1, 2022. [The Petitioner] informed us that he intends to relocate . . . to the U.S. . . . and continue his work for [REDACTED] in the U.S. . . . [W]e would be able to extend the job offer to him for the same role under our U.S. legal entity [REDACTED].”

addition, I am going to explore a new generation of automotive Video sensors which are Ethernet based. This work will include proof-of-concepts, integration and new system architecture.

In response to the Director's request for evidence, the Petitioner stated:

I plan to further the National Interest of the United States by focusing on architecture of hardware and software for SAE Level 5 vehicles I plan to work on a new chip generation which can handle much more sensors (e.g. Cameras, Lidar and Radars) bandwidth then a Level 2-4 car. I am planning to add support for Automotive Ethernet based sensors, which will reduce costs and simplify autonomous vehicle systems. . . . I am planning to work on an embedded hardware engine for these use-cases, which will protect the drivers from cyber-attacks.

. . . .

I am planning to expand the security efforts towards automotive displays - infotainment systems, e-mirrors, etc.

The Petitioner's appellate submission includes information about [redacted] System-on-Chip and [redacted] its Advanced Driver Assistance Systems (ADAS), its partnership with [redacted] [redacted] on automated driving functions, and its collaboration with [redacted] and [redacted] on ADAS.

A. Substantial Merit and National Importance

The first *Dhanasar* prong, substantial merit and national importance, focuses on the specific endeavor that the individual proposes to undertake. *Dhanasar*, 26 I&N Dec. at 889. The endeavor's merit may be demonstrated in a range of areas such as business, entrepreneurialism, science, technology, culture, health, or education. *Id.* The Director determined the Petitioner's proposed endeavor has substantial merit. We agree.

The Director concluded, however, that the Petitioner did not establish the national importance of his proposed endeavor. In determining whether the proposed endeavor has national importance, we consider its potential prospective impact. *Id.* at 889. This consideration may include whether the proposed endeavor has significant potential to employ U.S. workers (particularly in an economically depressed area), has other substantial positive economic effects, has national or even global implications within the field, or has other broader implications indicating national importance. *Id.* at 889-90. The Director determined the Petitioner did not establish the potential prospective impact of his proposed work.⁴

On appeal, the Petitioner asserts that the Director's decision disregarded the January 2022 USCIS policy update relating to national interest waivers sought by persons with advanced science,

⁴ The Director stated that the Petitioner did not establish that his proposed endeavor stands to "have an impact or benefit beyond the contribution you make to your individual employer."

technology, engineering, and mathematics (STEM) degrees.⁵ While the policy update explains how the *Dhanasar* framework can apply to STEM graduates and entrepreneurs, the Petitioner still must meet the three prongs set forth in *Dhanasar* to establish it is in the national interest that USCIS waive the requirement of a job offer, and thus the labor certification. We agree that the Petitioner's proposed endeavor involves STEM technologies and has substantial merit in relation to U.S. science and technology interests, but he must also demonstrate that it has sufficiently broad potential implications to demonstrate national importance.

The Petitioner submitted articles on the importance of ensuring U.S. leadership in automated vehicle technologies, advancements in autonomous vehicles, the autonomous driving market, supporting international education, maintaining our country's leadership in science and technology, and driving assistance technology and its safety potential. The record also includes information about U.S. critical and emerging technologies, security concerns and challenges for developing software in the field of autonomous vehicles, the U.S. Department of Transportation's (USDOT) plan and role relating to automated vehicles, System on a Chip, the Federal Highway Administration's strategic goals and plans, the USDOT's Safe System Approach, and the Biden-Harris Administration's actions to attract STEM talent.⁶ The Petitioner claims that these articles support the national importance of his proposed endeavor. The determination of national importance does not focus on the importance of one's field or industry in general, but "focuses on the specific endeavor that the foreign national proposes to undertake." *Id.* at 889. Here, none of the articles mention the Petitioner or his planned projects, or otherwise speak to the potential prospective impact of his specific proposed endeavor.

The Petitioner also argues that the Director's decision did not offer "any substantive analysis of the letters of support" from A-K-, J-G-, C-E-, L-S-, E-K-, D-R-, and R-W- who mainly discuss the Petitioner's software and hardware architecture and development capabilities and experience. The Petitioner's skills, knowledge, and prior work in his field relate to the second prong of the *Dhanasar* framework, which "shifts the focus from the proposed endeavor to the foreign national." *Id.* at 890. The issue here is whether the specific endeavor that he proposes to undertake has national importance under *Dhanasar*'s first prong.

Regarding the Petitioner's proposed endeavor's prospective impact, C-E- asserts that the Petitioner's "prospects for future contributions in the area of Autonomous Vehicles are enormous." In addition, L-S- contends that the Petitioner "will unquestionably continue to make significant contributions to the progress of autonomous vehicles." Likewise, D-R- expresses confidence that the Petitioner's "continued work in the United States will contribute significantly to the technological progress and competitive edge of the nation's autonomous vehicle sector." Similarly, A-K- opines that the Petitioner's "ongoing work will continue to contribute significantly to the growth and innovation within our sector." Moreover, R-W- indicates that the Petitioner's work relating "to the architecture of Secure communication and control protocols in Autonomous Vehicles and Advanced Driver-Assistance Systems will help create more secure transportation and increase the reliability and safety of Autonomous Vehicles used around the country."

⁵ The Petitioner received a Master of Science degree in Computer Science from [REDACTED] in 2010. A Petitioner's education, however, is a factor considered under *Dhanasar*'s second prong. *Id.* at 890

⁶ With respect to *Dhanasar*'s first prong, as in all cases, the evidence must demonstrate that a STEM endeavor has both substantial merit and national importance. *See generally* 6 *USCIS Policy Manual*, F.5(D)(2), <https://www.uscis.gov/policy-manual>.

While the Petitioner's proposed endeavor contributes to his employer and its business partners' hardware and software architecture projects, he has not provided evidence demonstrating that his proposed work would affect his industry or field at level indicative of national importance. It is insufficient to claim an endeavor has national importance or would create a broad impact without providing evidence to substantiate such claims. The letters from A-K-, J-G-, C-E-, L-S-, E-K-, D-R-, and R-W- do not contain sufficient information and explanation, nor does the record include adequate corroborating evidence, to show that the Petitioner's specific proposed work offers broader implications in his field or industry or substantial positive economic effects for our nation that rise to the level of national importance. Benefits rendered to a specific employer and its business partners alone, even an employer with a national footprint, are not sufficiently relevant to the question of whether a person's particular endeavor has national importance.

The Petitioner contends that his proposed endeavor has national importance on the basis that it contributes to autonomous vehicle and driver assistance technologies. He asserts that his undertaking improves road safety and vehicle technologies and therefore offers national or global implications. The Petitioner further argues that even if he "is working for a company, he is contributing to the overall goal of improving traffic safety." While [REDACTED] provides autonomous driving and driver assist technologies to multiple automobile manufacturers, the Petitioner has not demonstrated that [REDACTED] technological advancements would be attributable to his role as a Software and System on Chip Architect to an extent that his specific proposed work holds national importance. The Petitioner has not shown that his undertaking stands to offer broader implications in his field or industry beyond his hardware and software projects for [REDACTED] and its business partnerships.

To evaluate whether the Petitioner's proposed endeavor satisfies the national importance requirement we look to evidence documenting the "potential prospective impact" of his work. While the Petitioner's statements reflect his intention to provide hardware and software architecture services for his employer, he has not offered sufficient information and evidence to demonstrate that the prospective impact of his proposed endeavor rises to the level of national importance. In *Dhanasar*, we determined that the petitioner's teaching activities did not rise to the level of having national importance because they would not impact his field more broadly. *Id.* at 893. Here, we conclude the Petitioner has not shown that his specific proposed endeavor stands to sufficiently extend beyond his employer and its business partners to impact his field, the automotive industry, U.S. public safety, or our country's economy more broadly at a level commensurate with national importance.

Furthermore, the Petitioner has not demonstrated that the specific endeavor he proposes to undertake has significant potential to employ U.S. workers or otherwise offers substantial positive economic effects for our nation. Without sufficient information or evidence regarding any projected U.S. economic impact or job creation attributable to his future work, the record does not show that benefits to the regional or national economy resulting from the Petitioner's projects would reach the level of "substantial positive economic effects" contemplated by *Dhanasar*. *Id.* at 890.

The Petitioner has not established that his proposed endeavor has significant potential to employ U.S. workers (particularly in an economically depressed area), has other substantial positive economic effects, has national or even global implications within the field, or has other broader implications indicating national importance.

B. The Remaining *Dhanasar* Prongs

Because the documentation in the record does not establish the national importance of his proposed endeavor as required by the first prong of the *Dhanasar* precedent decision, the Petitioner has not demonstrated eligibility for a national interest waiver. As this issue is dispositive of the Petitioner's appeal, we need not reach, and therefore reserve, determination of his eligibility under the second and third prongs of the *Dhanasar* framework. *See INS v. Bagamasbad*, 429 U.S. 24, 25 (1976) (per curiam) (holding that agencies are not required to make "purely advisory findings" on issues that are unnecessary to the ultimate decision).

III. CONCLUSION

As the Petitioner has not met the requisite first prong of the *Dhanasar* analytical framework, we conclude that he has not established he is eligible for or otherwise merits a national interest waiver as a matter of discretion. The appeal will be dismissed for the above stated reasons, with each considered as an independent and alternate basis for the decision.

ORDER: The appeal is dismissed.